

M/S Kumar Textile Thru Proprietor v. State of U.P. and Another

Allahabad High Court · Division Bench · 11 September 2017 · Writ - C No. 41428 of 2017 · **Writ disposed of without opinion on merits; liberty to represent the disputed 13.07.2017 bill to the Executive Engineer under Clause 6.5 within two weeks; speaking and reasoned order within four weeks of receipt**

HEADNOTE

Where a consumer challenges a bill/notice and seeks a mandamus against disconnection, contending that the licensee billed under a Government Order inapplicable to power-loom supply, and the licensee disputes that the connection was granted for a power loom and points to Clause 6.5 of the Electricity Supply Code, 2005 as the forum for incorrect-bill disputes, the writ court will not quash the bill or restrain disconnection. Clause 6.5 supplies the machinery for disputed bills and arrears. Without expressing any opinion on the merits, the petition is disposed of with liberty to represent the disputed bills to the Executive Engineer (identified as the competent authority) within two weeks; that officer is to decide the representation strictly in accordance with law by a speaking and reasoned order within four weeks of receipt. The Court did not decide which Government Order applied, whether the connection was a power-loom supply, or whether disconnection was warranted.

FACTUAL SUMMARY

M/S Kumar Textile, through its proprietor, petitioned the Allahabad High Court to quash a bill/notice dated 13 July 2017 issued by the Executive Engineer First, Electricity Distribution Division, Victoria Park, Meerut, and for a mandamus restraining disconnection of a 40 HP connection (No. 0140/053732). The connection had been obtained by the proprietor's grandfather for a power loom and, after his death, transferred into the names of the petitioner and an uncle. The petitioner's case was that tariff was payable under Government Order No. 1969/24P-3-2006 dated 24 June 2006, whereas the Engineer had billed under Government Order No. 387/PCL/CU-3-2006, which the petitioner said did not apply to power looms.

Counsel for the Engineer disputed that the connection had been granted for a power loom and invoked Clause 6.5 of the Electricity Supply Code, 2005 as the forum for incorrect-bill disputes. A Division Bench on 7 September 2017 had first declined the matter as a recovery writ on that Bench's roster and directed listing before the appropriate Bench.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed consumption bill — representation to Executive Engineer; no writ quash or disconnection restraint

QUESTION

Where a consumer disputes the Government Order applied to a consumption bill and seeks to restrain disconnection, is the writ to be decided on merits, or is the consumer to proceed under Clause 6.5?

HOLDING

The writ is disposed of without quashing the bill or restraining disconnection. Clause 6.5 of the Electricity Supply Code, 2005 is the forum for a dispute arising out of incorrect bills. On the licensee's submission that respondent no. 2 was the competent authority, and without expressing any opinion on the merits, the petitioner is given liberty to represent the disputed bills to the Executive Engineer First, Electricity Distribution Division, Victoria Park, Meerut, within two weeks along with a certified copy of the order; if so moved, that officer shall decide the representation strictly in accordance with law by a speaking and reasoned order within a further four weeks of receipt. ¶ 4-7

QUALIFIER

The Court proceeded on the licensee's statement that respondent no. 2 was the Clause 6.5 competent authority, and did not decide whether the connection was a power-loom supply.

FLAG Source PDF concatenates two Division Bench orders: 7.9.2017 (Amreshwar Pratap Sahi and Rajiv Lochan Mehrotra, JJ., Court No. 37) transferring the writ as not a recovery matter on that Bench's roster, to be placed before the

appropriate Bench as a fresh matter on 11.9.2017; and this 11.9.2017 disposal (Bala Krishna Narayana and Shailendra Kumar Agrawal, JJ., Court No. 40). Pins are sequential unnumbered paragraphs of the 11.9.2017 order: (1) prayers; (2) connection history and competing Government Orders; (3) licensee's dispute that the connection was for a power loom and invocation of Clause 6.5; (4) finding of force in the alternative-remedy submission; (5) reproduction of Clause 6.5(a)–(d); (6) identification of respondent no. 2 as the competent authority; (7) disposal without opinion on merits. The Court styled the provision 'Section 6.5 of the Electricity Supply Code, 2005'. No deposit, stay, or disconnection restraint was ordered. No precedent cited.

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ to quash the 13.07.2017 bill/notice and restrain disconnection was not decided on merits. The consumer was sent to a time-bound Clause 6.5 representation before the Executive Engineer. ¶ 3-7

clause-6.5-statutory-remedy-disputed-bill The Court recited and reproduced Clause 6.5 as the Code forum when a consumer disputes an incorrect bill, including 6.5(a)–(d). ¶ 3-5

clause-6.5-representation-executive-engineer Liberty to represent the disputed bills to the Executive Engineer First, Electricity Distribution Division, Victoria Park, Meerut (respondent no. 2) within two weeks; speaking and reasoned order strictly in accordance with law within four weeks of receipt. ¶ 6-7

bill-dispute-requiring-facts-relegated-to-competent-authority Whether the connection was granted for a power loom, and which of the two Government Orders governed the tariff, were left to the Executive Engineer as the identified competent authority. ¶ 2-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER GOVERNMENT ORDER NO. 387/PCL/CU-3-2006 APPLIED TO THE CONNECTION, OR WHETHER GOVERNMENT ORDER NO. 1969/24P-3-2006 DATED 24.06.2006 GOVERNED THE TARIFF

The petitioner's principal challenge. Left to the Executive Engineer's speaking order on the Clause 6.5 representation. The Court expressed no opinion on the merits. ¶ 2, 7

NOT DECIDED — WHETHER THE 40 HP CONNECTION NO. 0140/053732 HAD BEEN GRANTED FOR RUNNING A POWER LOOM

Disputed by counsel for respondent no. 2. Not decided. ¶ 2-3

NOT DECIDED — VALIDITY AND QUANTUM OF THE BILL/NOTICE DATED 13.07.2017

Not quashed. Left to the Clause 6.5 representation. ¶ 1, 7

NOT DECIDED — WHETHER DISCONNECTION OF THE PETITIONER'S ELECTRICITY CONNECTION SHOULD BE RESTRAINED

Mandamus sought; not granted. No stay of disconnection was ordered. ¶ 1, 7